

Defendants' arguments that Scott lacked direct personal factual knowledge about CLETS searches about him and other City Council members.

18. *Marquez v. Look Cinemas II, LLC, et al*, Case No. CIVSB2428912
Defendant Spirit Master Funding's Motion for Summary Judgment
7/20/26, 9:00 a.m., Dept. S-17

Tentative Ruling

The Court would **GRANT**² this unopposed motion.

Case Summary

This is, essentially, a premises liability matter. Defendant Look ran the theater premises; Defendant Spirit owned the premises; and Defendant Morrison was the property manager. Plaintiff was lawfully on the property when she fell due to a purportedly hazardous and dangerous condition.

As such, on October 8, 2024, she filed suit alleging (1) negligence and (2) premises liability against all Defendants. On December 5, 2024, Defendant Spirit filed a Cross-Complaint against Look for (1) contractual indemnity; (2) equitable indemnity; (3) contribution; (4) breach of sub-contracts; and (5) declaratory relief. On April 4, 2024, an amended Cross Complaint was filed asserting the same causes but including a corrected caption. On July 1, 2025, Plaintiff filed a dismissal without prejudice as to Defendant Morrison.

Relevant here, Defendant Spirit filed a motion for summary judgment as to the Complaint on March 26, 2026. As of the date of this tentative decision's drafting, no opposition has been presented.

Statement of Law

Summary judgment is proper where there is no triable issue as to any material fact and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c(c).) The analysis requires three steps: First, the court must identify the issues framed within the pleading. (*AARTS Productions, Inc. v. Crocker National Bank* (1986) 179 Cal.App.3d 1061, 1064-1065.) Second, it must determine whether the moving party has established facts sufficient to negate the claim and justify a judgment in movant's favor. (*Ibid.*) Third, and finally, when a summary judgment motion, as a prima facie matter, justifies a judgment, the court must determine whether the opposition demonstrates the existence of a triable issue of material

² Materials Considered: Complaint, Answer; MSJ; Separate Statement of Undisputed Facts; Request for Judicial Notice; Campbell Declaration. Undisputed Material Facts: 1-7.

fact. (*Ibid.*) The court's sole function on a motion for summary judgment is issue finding, not issue determination. (See *Zavala v. Arce* (1997) 58 Cal.App.4th 915, 926.)

Analysis

Unopposed Motion – The failure of a party to oppose a motion for summary judgment is not a sufficient basis for granting the motion. A motion for summary judgment granted where moving party has not met its burden of showing that the action is without merit “would have to be reversed, even if the plaintiff failed to introduce a scintilla of evidence challenging that element.” (*Consumer Cause, Inc. v. SmileCare* (2001) 91 Cal.App.4th 454, 468 [emphasis in original].)

Undisputed Material Facts – UMF, #1.) Plaintiff alleges that she slipped and fell on the ground material at the subject property. (UMF 1.) Spirit entered into a lease agreement with Look Cinemas II that became effective on May 11, 2021. (UMF 2.) The original term of the lease agreement between Spirit and Look Cinemas II was to expire on June 30, 2036. (UMF 3.) Section 3.1 of the Lease Agreement states in pertinent part: “Grant of Lease. Landlord hereby leases to Tenant and Tenant hereby leases from Landlord the Leased Premises in its “as is” condition . . . Tenant has physically inspected the Leased Premises and has examined title to the Leased Premises , as well as to the furniture, fixtures, or equipment . . . and has found all of the same satisfactory in all respects for all of Tenant’s purposes.” (UMF 4.) Section 4.5 of the Lease Agreement states in pertinent part:

Delivery. Tenant agrees to take possession of the Leased Premises whether or not any subtenants are in occupancy of all, or any portion of, the Leased Premises . . . Tenant’s . . . shall and may peaceably and quietly have, hold and enjoy the Leased Premises for the term aforesaid, without hindrance or molestation by the Landlord of any right to: (a) possess or occupy the Leased Premises or (b) enter or access the Leased Premises.

(UMF 5.) Section 7.1.1 of the Lease Agreement states in pertinent part:

Maintenance and Repairs/Alterations. Without in any way affecting any other provisions of this Lease, Tenant shall, at its sole cost and expense, be responsible for (a) keeping all exterior and interior portions of the Leased Premises, including but not limited to the building, structures and improvements erected on the Leased Premises in good order and repair, free from actual or constructive waste, including without limitation, the roof, walls, foundations, and the HVAC . . . Tenant waives any right to require Landlord to maintain, repair or rebuild the Leased Premises.

(UMF 6.) Spirit Master Funding X, LLC did not have actual knowledge of the ground material that Plaintiff claims that she slipped on, or any other potentially dangerous condition, at any time prior to the incident. (UMF 7.)

Spirit's Arguments – Here, Spirit moves for summary judgment on the basis that that both causes of action fail because Spirit did not owe a duty as to the ground material located within the theater that allegedly constituted a dangerous condition.

More specifically, Spirit asserts that the undisputed facts establish that Spirit owed no duty to Plaintiff as to the ground material that allegedly constituted a dangerous condition. Look Cinemas was in exclusive control of the property for nearly three years prior to Plaintiff's fall, with Spirit having no access to the property to know about the dangerous condition of the floor. Spirit did not have actual knowledge of the alleged dangerous condition prior to the subject accident. Spirit did not have the right or ability to correct the allegedly dangerous condition.

Generally speaking, *Garcia v. Holt* (2015) 242 Cal.App.4th 600, 604-605, asserts that public policy precludes landlord liability for a dangerous condition on the premises which came into existence after possession has passed to a tenant. (Citing *Uccello v. Laudenslayer* (29175) 44 Cal.App.3d 504, 510.) Here, nothing has been submitted showing that Spirit had notice of the dangerous condition of the floor, and Spirit has submitted uncontested evidence that the property was under its tenant's control. In other words, the lease had turned over possession to Look prior to all relevant events. Declarant Campbell also asserts that Spirit did not have actual knowledge of the ground material that Plaintiff claims she slipped on and did not have access to the property. Plaintiff has not responded. Look Cinemas has not responded. Thus, there are no facts offered to contradict Spirit's contention, and there appears to be no triable issue of material fact.
